HEADNOTE

> *"1. As soon as a patent proprietor has knowledge of the alleged infringement, it must investigate it, take the necessary measures to clarify it and obtain the documents required to support its claims. A longer period (here almost three months) without significant efforts to clarify the possible patent infringement has to be considered as not treating the matter with the necessary urgency.*
> *2. On the technologies used in the "Video Assistant Referee" (VAR) decision making process in a game of football."*

COURT
Local Division in Hamburg

PROCEEDINGS
Action for revocation

PATENT
EP1944067

Method and system for detecting an offside situation

KEYWORDS

Urgency | preliminary injunction | Art. 62(2) UPCA | Rule 209(2)(b) RoP | Rule 211(3) RoP | Degree of certainty | Art. 62(4) UPCA | Rule 211.2 RoP

SUMMARY
The Local Division in Hamburg ruled on an action for revocation. The patent at issue relates to a method and system for detecting an offside situation. According to the headnotes of the decision, a patent proprietor must promptly investigate any alleged infringement of which it becomes aware and take the necessary steps to clarify the matter and gather supporting documents, with unreasonable delay in these efforts, such as nearly three months of inactivity, constituting a failure to treat the infringement with appropriate urgency. The decision also addresses the technologies employed in the Video Assistant Referee system used to make decisions during football matches.